

Definitions

1. In this Agreement:

"**Agreement**" means this agreement and the Schedule to this agreement including the Research Plan.

"**Background Intellectual Property**" means any Intellectual Property belonging to a Party or which a Party may otherwise have rights to use (including by way of licence), existing prior to the Commencement Date of this Agreement or developed by a Party independently of this Agreement, which is used in, or contributed to, the Research.

"**Commencement Date**" means the commencement date of the Research set out in the Schedule.

"**Completion Date**" means the completion date of the Research set out in the Schedule.

"**Confidential Information**" means any information relating to the business or financial affairs of [REDACTED] the University, the existence and contents of this Agreement and any information that arises in relation to this Agreement or the Research.

"**Fees**" means the Student's University course fees that [REDACTED] has agreed to pay on behalf of the Student as detailed in the Schedule (if any).

"**Intellectual Property**" means any property right constituted under the Patents Act 2013, the Designs Act 1953, the Trade Marks Act 2002, the Copyright Act 1994, the Plant Variety Rights Act 2022, as well as any like right constituted by any rule of law or by legislation, either in New Zealand or in any other country. This includes rights in know-how, confidential information, trade secrets, unregistered trade marks and any pending right based on an application for registration of such right.

"**Location**" means the location set out in the Schedule.

"**Milestones**" means the milestones relating to the Research detailed in the Schedule.

"**Payment Dates**" means the dates for payment of the Fees and/or Stipend as set out in the Schedule (if any).

"**Project**" means the [REDACTED] project detailed in the Schedule.

"**[REDACTED] Supervisor**" means the [REDACTED] supervisor named in the Schedule.

"**Publication**" means any communications or written material of any kind, including but not limited to e-mails, reports, papers, articles, posters, graphics, audio and visual presentations or interactions and communications on social media, but does not include the Thesis.

"**Reporting Dates**" means the reporting dates set out in the Schedule.

"**Research**" means the research to be performed by the Student in relation to the Project as detailed in the Research Plan.

"**Research Plan**" means the research plan for the Research which is set out in the Schedule.

"**Results**" means the results of the Research.

"**Schedule**" means a schedule to this Agreement.

"**Stipend**" means the stipend that [REDACTED] has agreed to pay to the Student as detailed in the Schedule (if any).

"**Thesis**" means the Student's thesis.

"**University Supervisor**" means the University supervisor named in the Schedule.

"**Working Day**" means any day of the week other than a Saturday or Sunday or regional holiday, on which the New Zealand trading banks are open for business.

The Research

2. The Student agrees to undertake the Research in relation to the Project commencing on the Commencement Date and terminating on the Completion Date, unless terminated in accordance with the termination provisions of this Agreement.
3. The Student will perform the Research and fulfil all other obligations relating to the Student as detailed in this Agreement.
4. The availability of the Student to perform the Research is an essential term of this Agreement.
5. The Student must immediately notify the [REDACTED] Supervisor and the University Supervisor of any issues or changes that prevent the Student from working on or completing any aspect of the Research.
6. The Research is to be primarily undertaken at the Location.

Obligations of the Student

7. In performing the Research the Student will:
 - 7.1. Use their best endeavours to complete the Research in accordance with the Milestones and time frame for the Research;
 - 7.2. Exercise the degree of skill, care and diligence reasonably expected of students in similar circumstances;
 - 7.3. Undertake the Research using proper and recognised scientific and research standards;
 - 7.4. Observe the reasonable directions of [REDACTED];
 - 7.5. Comply with and work to any rules, regulations or guidelines relating to health and safety issued by [REDACTED] or WorkSafe from time to time. [REDACTED] will provide the Student with copies of all current rules, regulations or guidelines that may be applicable to the provision of the Research or otherwise in relation to the Location (if [REDACTED] premises);
 - 7.6. Operate any equipment or machinery at the Location (if [REDACTED] premises) in accordance with the operating instructions and procedures given by [REDACTED] personnel and only with the prior approval of the [REDACTED] Supervisor;
 - 7.7. Carry out the Research during the research timeframe subject to the rules and policies of the University and in accordance with the terms and conditions of this Agreement; and
 - 7.8. Comply with all laws, regulations and rules of any government, local or public authority that may be applicable to the Research.

Obligations of [REDACTED]

8. [REDACTED] agrees to provide the:
 - 8.1. Necessary resources to enable the Student to meet their obligations in respect of the Research, such as office space, laboratory space and associated facilities and equipment; and
 - 8.2. [REDACTED] Supervisor to jointly supervise the Student with the University Supervisor, in accordance with the University's course regulations.

Obligations of the University

9. The University agrees to use its best endeavours to ensure that the Student completes the Research in accordance with the Milestones and the Completion Date.
10. The University shall notify [REDACTED] of any changes within the University that affect the ability of the Student to carry out or complete the Research.

Review and Reporting

11. The [REDACTED] Supervisor will meet with the Student on the Reporting Dates to review the Student's progress in undertaking the Research.
12. The Student will keep accurate and systematic records and provide progress reports relating to the Research as reasonably requested by the [REDACTED] Supervisor.
13. Upon completion of the Research, and no later than the final Reporting Date specified in the Schedule, the Student shall deliver to [REDACTED] a final written report on the Research.

Payment

14. The Stipend (if any) and the Fees (if any) shall be paid as set out in the Schedule.

Intellectual Property

15. [REDACTED] and the University shall continue to own all rights in their respective Background Intellectual Property.
16. The Student and the University acknowledge and agree that it is a condition of the Student's involvement in the Project that the Results, including the details of any invention made in the course of the Research, and all Intellectual Property created or generated by the Student in relation to the Research, are the exclusive property of [REDACTED]
17. Subject to clause 29, the Student and the University agree to sign all documents and do all things reasonably required by [REDACTED] to confirm [REDACTED] ownership of any rights under clause 16, including but not limited to an assignment of any Intellectual Property created or generated by the Student.
18. If exploitation of the Results by [REDACTED] requires access to the University's Background Intellectual Property, then [REDACTED] and the University agree to negotiate in good faith with the aim of reaching agreement on a licence to use the University's Background Intellectual Property.

Confidentiality

19. The Parties will keep confidential, and will not use, or permit to be used, any Confidential Information that is disclosed, or which they may see, hear, have access to or come across during the course of carrying out the Research or in any other dealings relating to this Agreement.
20. The Parties shall continue to keep the Confidential Information confidential following the expiry or termination of this Agreement, until such time as the Confidential Information lawfully enters the public domain.
21. To protect [REDACTED] option of seeking protection for any Intellectual Property generated or created in the course of the Project, the Results are to remain confidential and are not to be used, disclosed to any third party or made public without the prior written permission of [REDACTED]
22. Discussions between the Student and the University Supervisor regarding the Research are expressly authorised by [REDACTED] and will not breach the confidentiality obligations under this Agreement.

Reports

23. The Student shall be entitled to submit a report on the results of the Research to the University for review provided that:
 - 23.1. [REDACTED] prior written approval is obtained before any report is submitted for examination;
 - 23.2. The Student provides [REDACTED] with a copy of the proposed report at least fourteen (14) Working Days prior to the date of submission; and
 - 23.3. The Student makes all reasonable changes to the report as requested by [REDACTED]

Thesis

24. The Student shall provide [REDACTED] with a copy of the Thesis in the form the Student intends to submit for examination at least twenty (20) Working Days prior to the due date for submission.
25. [REDACTED] undertakes to review the Thesis within twenty (20) Working Days of receiving the Thesis.
26. Any changes to the Thesis reasonably required by [REDACTED] must be made by the Student prior to submission for examination.
27. After examination, if any changes have been required as part of the examination, the Student shall re-submit the Thesis to [REDACTED] at least twenty (20) Working Days prior to the intended date of finalisation of the changes. Any changes to the Thesis reasonably required by [REDACTED] and consistent with the requirements of the examination process must be made prior to providing a final copy of the thesis to the University Library.
28. Where publication could potentially damage [REDACTED] commercial interests, or prevent [REDACTED] from protecting any Intellectual Property rights arising from the Project, [REDACTED] may seek an embargo on the Thesis, normally for a maximum of two years, but, possibly indefinitely where

reasonably required, in which case the continued embargo of the Thesis will be reviewed every two years and will cease where it is no longer reasonable to require continued embargo. This embargo will mean that the Thesis will not be made publicly available outside of the University examination process.

29. The Student shall retain copyright in the Thesis, provided the Student:

- 29.1. Grants to [REDACTED] a royalty-free, non-exclusive right to reproduce the Thesis in whole or in part; and
- 29.2. Complies with all other terms of this Agreement.

Publication

30. [REDACTED] prior written approval must be obtained before any Publication on the Research is produced by the Student.
31. [REDACTED] will not withhold permission for the Student or the University to publish any Publication provided that:
 - 31.1. The Publication does not in any way interfere, hinder or damage [REDACTED] commercial interests, or prevent [REDACTED] from protecting any Intellectual Property rights arising from the Project;
 - 31.2. The Student or the University, as the case may be, provides [REDACTED] with a copy of the proposed Publication at least twenty (20) Working Days prior to the date of submission for publication; and
 - 31.3. The Student or the University, as the case may be, makes all reasonable changes, amendments, alternations or deletions to the Publication as requested by [REDACTED] prior to submitting the Publication.

Publication by [REDACTED]

32. [REDACTED] will ensure that any scientific publications produced by [REDACTED] relating to the Project make reference to the Student by name where the Student has contributed materially to the research being published.

Termination

33. If the Project to which the Research relates is unable to commence or continue due to any reasonable grounds, including but not limited to, loss or lack of financial or human resources, then the [REDACTED] Supervisor, shall meet with the Student and the University Supervisor to discuss possible other projects the Student may be suitable for. If [REDACTED] is unable to provide another suitable research project for the Student, then [REDACTED] may terminate this Agreement by giving fourteen (14) Working Days' notice in writing to the Student and the University.
34. [REDACTED] may terminate this Agreement by giving fourteen (14) Working Days' notice in writing in the event that:
 - 34.1. Either the Student or the University:
 - 34.1.1. Commits a material breach of any term of this Agreement;
 - 34.1.2. Commits a breach of this Agreement that is capable of being remedied and has not remedied the breach within fourteen (14) Working Days of a request in writing from [REDACTED] to do so; or
 - 34.1.3. Commits an act of serious misconduct which, in [REDACTED] reasonable opinion, brings, or may bring, the Research, the Project or [REDACTED] into disrepute.
 - 34.2. The Student:
 - 34.2.1. Fails to conduct the Research in a manner reasonably expected of students in similar circumstances; or
 - 34.2.2. Ceases to be enrolled at the University.
35. For the avoidance of doubt, the Parties acknowledge that termination of this Agreement will not terminate the Student's enrolment at the University.

Liability

36. To the extent allowed by law, neither [REDACTED] nor the University shall be liable to the Student under, or in relation to, this Agreement or the Research.
37. The total liability of [REDACTED] and the University to each other shall be limited to actual losses of the other as a direct result of wilful default up to a maximum amount of \$1,000,000.
38. [REDACTED] confirms that its insurer has agreed to endorse [REDACTED] existing insurance cover for Professional Indemnity (PI) and General (Public) Liability (GL) to include the Student as an additional insured. In general term, this means:

- 38.1. For the PI policy, that the Student will be covered as if they are a [REDACTED] employee which means that the policy will not apply where the Claim has been brought about or contributed to by the dishonest, fraudulent, criminal or malicious act or omission of the Student; and
- 38.2. For the GL policy, that the Student will be covered in respect of work they perform for or on behalf of [REDACTED] in connection with this Agreement and provided the protocols set out in the applicable Postgraduate Study Guidelines are adhered to (these can be accessed via <https://www.auckland.ac.nz/en/students/academic-information/postgraduate-students/postgraduate-policies-guidelines-and-forms.html>).

Relationship

39. The Student acknowledges and agrees that he or she is an independent contractor and that nothing stated or implied into this Agreement shall create an employment relationship between [REDACTED] and the Student.

Force Majeure

40. No Party shall be responsible to the other Parties for any delay or failure in performance of any obligations imposed by this Agreement, provided that such delay or failure is occasioned by fire, flood, explosion, lightning, windstorm, earthquake, subsidence of soil, court order, government interference, civil commotion, riot, war, strikes, labour disturbances, natural genetic variations of any living matter, or any cause of like or unlike nature beyond the reasonable control and without the fault or negligence of a Party.

Dispute resolution

41. If any dispute arises between the Parties in relation to this Agreement, then the Parties will negotiate promptly in good faith in order to amicably resolve the dispute themselves.
42. If the Parties are unable to resolve the dispute within ten (10) Working Days of the dispute arising, then any Party

may refer the matter to mediation by giving notice to the other Parties. The mediator shall be one mediator to be agreed between the Parties or, in the event that a single mediator cannot be agreed within five (5) Working Days, then by a mediator appointed by the Arbitrators' and Mediators' Institute of New Zealand Inc.

43. If a resolution cannot be reached by mediation within a further twenty (20) Working Days, then any Party may commence proceedings in any court of competent jurisdiction.
44. Nothing in clauses 41 to 43 shall limit or restrict the ability of any Party to seek urgent interim and preliminary relief from any court.

Governing Law

45. This Agreement shall be governed by the laws of New Zealand. The Parties submit to the non-exclusive jurisdiction of the courts of New Zealand. The Parties will not object to the exercise of jurisdiction by those courts, either for forum non-conveniens, or on any other basis.

General

46. The provisions of this Agreement relating to intellectual property, confidentiality, publication, termination and governing law, shall not expire when this Agreement ends.
47. The Student warrants that on signing this Agreement, the Agreement is not inconsistent with any other agreement that the Student may have signed.
48. Unless separately agreed in writing by [REDACTED] or included in any written employment contract with [REDACTED] the Student will not be entitled to any remuneration, reward or return from any product of the Research from [REDACTED]
49. The Student acknowledges that they have had the opportunity to seek independent legal advice before entering into this Agreement.
50. Any variations, waivers and modifications of this Agreement, shall only be valid if in writing and signed by the Parties.